

Court No. - 37

Case :- WRIT - C No. - 17087 of 2012

Petitioner :- Padam Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Satyendra Narayan Singh

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

We have heard Shri Satyendra Narayn Singh, learned counsel appearing for the petitioner. Learned Standing Counsel appears for the State respondents. Shri Dharmendra Srivastava appears for respondent nos. 2 and 3.

On a checking made on the premises of the petitioner on 5.5.2011, he was found unauthorisedly drawing the electricity for operating a 3 HP motor for running a flour mill. A first information report under Section 135 of the Indian Electricity Act was lodged and a provisional assessment was made proposing to impose Rs. 60, 831/- as electricity charges on the formula given in the U.P. Electricity Supply Code, 2005.

The petitioner filed a detailed objections alleging that he is running a flour mill with 10 HP motor with the aid of the generator purchased by him after taking loan from Bhoomi Vikas Bank. The 3 HP motor at his residence is used sparingly, for grinding and for which he also draws the electricity generated from the generator.

The Executive Engineer records in his order dated 28.1.2012, that he got the checking made all over again, on which the inspecting party confirmed the earlier report. The report annexed to his letter addressed to the petitioner communicating the reasons to reject his objections has not been annexed. There was no objections raised to the method and quantum of assessment.

The petitioner's representation has been decided. He has a remedy available to him under Section 127 of the Indian Electricity Act, 2003 to file an appeal against the assessment and demand order.

The writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 5.4.2012

RKP